# Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026

I, Daniel Mulino, Assistant Treasurer and Minister for Financial Services, having considered the matters set out in paragraph 58AE(1)(a) of the *Competition and Consumer Act 2010*, and having consulted relevant entities, make the following designation.

Dated 22 May 2026

Dr Daniel Mulino
Assistant Treasurer
Minister for Financial Services

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# Part 1—Preliminary

## 1 Name

This instrument is the *Competition and Consumer (Scams Prevention Framework—Regulated Sectors) Designation 2026*.

## 2 Commencement

(1) Each provision of this instrument specified in column 1 of the table commences, or is taken to have commenced, in accordance with column 2 of the table. Any other statement in column 2 has effect according to its terms.

| **Commencement information** | | |
|---|---|---|
| **Column 1** | **Column 2** | **Column 3** |
| **Provisions** | **Commencement** | **Date/Details** |
| 1. The whole of this instrument | The day after this instrument is registered. | |

Note: This table relates only to the provisions of this instrument as originally made. It will not be amended to deal with any later amendments of this instrument.

(2) Any information in column 3 of the table is not part of this instrument. Information may be inserted in this column, or information in it may be edited, in any published version of this instrument.

## 3 Authority

This instrument is made under the *Competition and Consumer Act 2010*.

## 4 Definitions

Note: Expressions have the same meaning in this instrument as in the *Competition and Consumer Act 2010* as in force from time to time—see paragraph 13(1)(b) of the *Legislation Act 2003*.

In this instrument:

***ADI*** has the same meaning as in the *Banking Act 1959*.

***banking business*** has the same meaning as in the *Banking Act 1959*.

***carriage service*** has the same meaning as in the *Telecommunications Act 1997*.

***carrier*** has the same meaning as in the *Telecommunications Act 1997*.

***covered banking service***: see subsection 11(2).

***covered digital platform service***: see subsection 15(2).

***covered telecommunications service***: see subsection 13(2).

***designated instant messaging service***: see section 5.



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***designated internet search service***: see section 6.

***designated social media service***: see section 7.

***electronic service*** has the same meaning as in the *Online Safety Act 2021.*

***instant messaging service*** includes real-time communication of non-text-based material.

***listed carriage service*** has the same meaning as in the *Telecommunications Act 1997*.

***material*** has the same meaning as in the *Online Safety Act 2021*.

***message*** means a message (within the meaning of the *Spam Act 2003*) other than a message sent using a voice call service.

***message service*** means a service that enables messages to be sent or received using a carriage service (other than where a message is carried wholly over the internet).

***public carriage service provider*** means a carriage service provider (within the meaning of the *Telecommunications Act 1997*) other than a person who is a carriage service provider only because of subsection 87(3) of that Act.

***purchased payment facility*** has the same meaning as in the *Payment Systems (Regulation) Act 1998*.

***the Act*** means the *Competition and Consumer Act 2010*.

***voice call*** has the same meaning as in the *Do Not Call Register Act 2006*.

***voice call service*** means a service that enables voice calls to be made or received using a carriage service (other than where a voice call is carried wholly over the internet).

## 5 Designated instant messaging service

For the purposes of this instrument, a ***designated instant messaging service*** is an electronic service that satisfies all of the following conditions:

(a) the service is an instant messaging service;

(b) the provision of that service by an entity is *not* ancillary or incidental to the provision of one or more other electronic services by that entity;

(c) the service is *not* a service that has a significant purpose of facilitating communication within an entity as an internal resource or tool for a business;

(d) the service is *not* a designated internet search engine service;

(e) the service is *not* a designated social media service;

(f) the service is *not* a covered telecommunications service.

Example 1: In addition to enabling end-users to play online games with other end-users, an online gaming service also enables end-users to communicate with other end-users, as an ancillary service to the main service of online gaming. This service would *not* be a designated instant messaging service for the purposes of this instrument.



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Example 2: An organisation uses an instant messaging service under a licence agreement primarily for facilitating communication within the organisation, where the licence agreement only allows employees of the organisation and external parties authorised by the organisation to access the service. This service would *not* be a designated instant messaging service for the purposes of this instrument.

## 6 Designated internet search service

For the purposes of this instrument, a ***designated internet search service*** is an electronic service that satisfies all of the following conditions:

(a) the service is the provision of advertising material to users of an internet search engine (either as a result in response to a search query, or otherwise);

(b) the internet search engine enables searches of the internet broadly, rather than just searches:

(i) of a limited database; or

(ii) to compare prices for particular goods or services; or

(iii) to compare prices for goods or services across a particular sector;

(c) the advertising material is provided under an arrangement between the entity that provides the service and another person (not being the user of the internet search engine) for consideration;

(d) the service is *not* a designated social media service.

## 7 Designated social media service

(1) For the purposes of this instrument, a ***designated social media service*** is an electronic service that satisfies all of the following conditions:

(a) the sole purpose, or a significant purpose, of the service is to enable online social interaction between 2 or more end-users;

(b) the service allows end-users to link to, or interact with, some or all of the other end-users;

(c) the service allows end-users to post material on the service;

(d) the provision of that service by an entity is *not* ancillary or incidental to the provision of one or more other electronic services by that entity.

Example: In addition to enabling end-users to play online games with other end-users, an online gaming service also enables online social interaction between end-users, as an ancillary service to the main service of online gaming. This service would *not* be a designated social media service for the purposes of this instrument.

(2) For the purposes of paragraph (1)(a), online social interaction includes online interaction that enables end-users to share material for social purposes.

*Services that are not designated social media services*

(3) Despite subsection (1), none of the following electronic services are ***designated social media services***:

(a) instant messaging services;

(b) voice call services;

(c) services that have the sole or primary purpose of enabling end-users to communicate by means of email or video calling;



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(d) services that have the sole or primary purpose of enabling end-users to play online games with other end-users;

(e) services that have the sole or primary purpose of enabling end-users to share information (such as reviews, technical support or advice) about products or services;

(f) services that have the sole or primary purpose of supporting the education of end-users;

(g) services that have the sole or primary purpose of supporting the health of end-users;

(h) services that have a significant purpose of facilitating communication between educational institutions and students or students' families;

(i) services that have a significant purpose of facilitating communication between providers of health care and people using those providers' services;

(j) services that have a significant purpose of enabling end-users to interact with other end-users for the purpose of initiating a romantic relationship, other than where that interaction is ancillary or incidental to a purpose of facilitating the provision of goods or services by one end-user to another end-user.

Example: Dating, matchmaking, matrimonial and companionship websites and applications enable end-users to interact with other end-users for the purpose of initiating a romantic relationship.

*Advertising purposes are to be disregarded*

(4) In determining whether the condition set out in paragraph (1)(a) is satisfied, or whether a service is covered by subsection (3), disregard the following:

(a) the provision of advertising material on the service;

(b) the generation of revenue from the provision of advertising material on the service.



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# Part 2—Designation of regulated sector—banking

## 11 Designation of services as regulated sector—banking

(1) For the purposes of subsection 58AC(1) of the Act, covered banking services are designated as a regulated sector of the Australian economy.

(2) A ***covered banking service*** is either of the following services:

(a) a service provided by an ADI in the course of carrying on its banking business in Australia;

(b) to the extent that it is *not* covered by paragraph (a)—the provision of a purchased payment facility by an ADI in the course of carrying on its business in Australia.

## 12 Designation of SPF sector regulator—banking

For the purposes of subsection 58ED(1) of the Act, ASIC is designated as the SPF sector regulator for the regulated sector described in section 11.



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# Part 3—Designation of regulated sector—telecommunications

## 13 Designation of services as regulated sector—telecommunications

(1) For the purposes of subsection 58AC(1) of the Act, covered telecommunications services are designated as a regulated sector of the Australian economy.

(2) A ***covered telecommunications service*** is either of the following services:

(a) a voice call service;

(b) a message service;

if the service is:

(c) provided by a carrier and a public carriage service provider; and

(d) provided using a listed carriage service.

Note: The supply of a covered telecommunications service requires a person acting in the capacity of a carrier and a public carriage service provider. It may be the same person or a different person.

## 14 Designation of SPF sector regulator—telecommunications

For the purposes of subsection 58ED(1) of the Act, ACMA is designated as the SPF sector regulator for the regulated sector described in section 13.



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# Part 4—Designation of regulated sector—digital platforms

## 15 Designation of services as regulated sector—digital platforms

(1) For the purposes of subsection 58AC(1) of the Act, covered digital platform services are designated as a regulated sector of the Australian economy.

(2) A ***covered digital platform service*** is any one of the following services:

(a) a designated instant messaging service;

(b) a designated internet search service;

(c) a designated social media service.



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# Part 10—Application, savings and transitional provisions

## 101 Transitional application to banking regulated sector—partial exceptions

(1) For the purposes of paragraph 58AD(5)(b) of the Act, a covered banking service is declared *not* to be a regulated service for the banking regulated sector for the purposes of all of Part IVF of the Act, other than:
  (a) Division 3 (about sector-specific codes); and
  (b) section 58DB (about Ministerial authorisation of external dispute resolution schemes for a regulated sector).

(2) Subsection (1) only applies during the period:
  (a) beginning on the day this instrument commences; and
  (b) ending before 1 September 2026.

(3) For the purposes of paragraph 58AD(5)(b) of the Act, a covered banking service is declared *not* to be a regulated service for the banking regulated sector for the purposes of all of Part IVF of the Act, other than:
  (a) section 58BZG (about membership of an SPF EDR scheme); and
  (a) Division 3; and
  (b) section 58DB.

(4) Subsection (3) only applies during the period:
  (a) beginning on 1 September 2026; and
  (b) ending before 31 March 2027.

## 102 Transitional application to telecommunications regulated sector—partial exceptions

(1) For the purposes of paragraph 58AD(5)(b) of the Act, a covered telecommunications service is declared *not* to be a regulated service for the telecommunications regulated sector for the purposes of all of Part IVF of the Act, other than:
  (a) Division 3 (about sector-specific codes); and
  (b) section 58DB (about Ministerial authorisation of external dispute resolution schemes for a regulated sector).

(2) Subsection (1) only applies during the period:
  (a) beginning on the day this instrument commences; and
  (b) ending before 1 September 2026.

(3) For the purposes of paragraph 58AD(5)(b) of the Act, a covered telecommunications service is declared *not* to be a regulated service for the telecommunications regulated sector for the purposes of all of Part IVF of the Act, other than:
  (a) section 58BZG (about membership of an SPF EDR scheme); and
  (a) Division 3; and
  (b) section 58DB.



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(4) Subsection (3) only applies during the period:
  (a) beginning on 1 September 2026; and
  (b) ending before 31 March 2027.

## 103 Transitional application to digital platforms regulated sector—partial exceptions

(1) For the purposes of paragraph 58AD(5)(b) of the Act, a covered digital platforms service is declared *not* to be a regulated service for the digital platforms regulated sector for the purposes of all of Part IVF of the Act, other than:
  (a) Division 3 (about sector-specific codes); and
  (b) section 58DB (about Ministerial authorisation of external dispute resolution schemes for a regulated sector).

(2) Subsection (1) only applies during the period:
  (a) beginning on the day this instrument commences; and
  (b) ending before 1 September 2026.

(3) For the purposes of paragraph 58AD(5)(b) of the Act, a covered digital platforms service is declared *not* to be a regulated service for the digital platforms regulated sector for the purposes of all of Part IVF of the Act, other than:
  (a) section 58BZG (about membership of an SPF EDR scheme); and
  (a) Division 3; and
  (b) section 58DB.

(4) Subsection (3) only applies during the period:
  (a) beginning on 1 September 2026; and
  (b) ending before 31 March 2027.



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